

DISSENTING OPINION BY COUNT ROSTWOROWSKI.

[*Translation.*]

Being, to my great regret, unable to concur in the conclusion of the Advisory Opinion, I feel it my duty to use the right given by Article 57 of the Statute and to append to the Court's opinion a statement of my own opinion.

The question referred to the Court in the terms of the Council's request only concerns one of the legal effects of the Resolution of March 12th, 1927, namely, exclusion from Minority schools and the question whether or not the fact of such exclusion can now be invoked against the declarations provided for in Article 131, paragraph 1, of the Geneva Convention.

In the reply to be given to the question defined in this manner, I think that—without going into points of detail of secondary importance raised in the course of the written or oral proceedings—it is desirable and necessary only to concern myself with two factors which I venture to regard as relevant and of fundamental importance:

1. The legal significance of the two Resolutions of the Council of March 12th and December 8th, 1927, inasmuch as they constitute the initial legal act the legal consequences or effects of which have to be determined.
2. An examination of the relevant provisions from the point of view of whether they can now be validly relied upon to resist the free operation of these legal effects.

I.

With regard to the first point, I think it important to remember that the Council had before it the view maintained by the Polish Government that the exclusion or non-admission to Minority schools of children speaking only Polish was justified. This view was based on Article 69, paragraph 1, of the Geneva Convention, which compelled the Polish Govern-

ment to provide adequate facilities for ensuring that, in the primary schools, instruction should be given to children of such Polish nationals through the medium of their own language.

Now, the application of Article 69, paragraph 1—an article of fundamental importance placed under the guarantee of the League of Nations and containing the principle governing the Minority school system—was thrown out of gear by the operation of Article 131, paragraph 1—an article taken from Division II of the Third Part of the same Convention and belonging to the transitional school régime. This latter provision established what may be called a technical method for determining the language of a child or pupil, by giving the persons legally responsible for a child's education the right to make a declaration on the subject, which declaration was alone to enter into account and could not be verified or disputed in any way by the school authorities. In the opinion of the Court (see Judgment of April 26th, 1928, Collection of Judgments, Series A., No. 15, p. 34), the prohibition of verification and dispute has as its object, not the substitution of a new principle for that which, in the nature of things and according to the provisions of the Minorities Treaty, determines membership of a racial, linguistic or religious minority, but solely the avoidance of the disadvantages—particularly great in Upper Silesia—which would arise from a verification or dispute on the part of the authorities as regards such membership.

The application of Article 69, paragraph 1—the fundamental article—was thrown out of gear by the operation of Article 131, paragraph 1—an article of secondary importance because the latter did not offer the smallest guarantee against declarations not in accordance with the facts and thus left open a door whereby children who in fact spoke Polish only might gain admittance to Minority schools.

It was partly to remedy the inconvenience alluded to that the Resolution of March 12th, 1927, was unanimously adopted, the representatives of the Governments signatories of the Geneva Convention participating in the vote.

Whilst terminating the appeal proceedings in paragraph I of the Resolution, the Council, in paragraphs II, III, IV and

V moreover approved an agreement or arrangement concluded between the two Governments mentioned thanks to the mediatory action of the Council and under the auspices of the League of Nations. The two Governments, which were the Parties to this agreement, were covered, in so far as they were concerned, by the terms of paragraph III of the Final Protocol of the Geneva Convention: "The two contracting Parties may, by mutual consent, amend or abolish all provisions of the transitional régime." In the case under consideration, there was no question either of amending or abolishing any article relating to the transitional régime, as moreover appears from the final phrase of paragraph V of the Resolution of March 12th, 1927, according to which the arrangement "shall not be interpreted as in any way modifying the provisions of that Convention". It is nevertheless true that the Council, in agreement with the two Governments, though leaving intact the terms of the Convention, sanctioned a departure from its terms in a series of concrete cases, and this more particularly with regard to Article 131, paragraph 1.

The character of the arrangement as a departure from the terms of the Convention resulted less from the introduction of an international system of language tests, which could not be said to be excluded by the terms of that article, than from the institution of a new decisive criterion for the admission or exclusion of children—a criterion which was to be applied, notwithstanding the terms of Article 131, paragraph 1, which laid down that account was only to be taken of the declarations made by persons legally responsible for the education of children.

The new criterion consisted in a test to be undergone before the neutral expert appointed by the Council. Children failing at the language test could not be admitted to the school.

Thus, outside but parallel to the normal system laid down by the Convention and as a derogation from the latter, the Council inaugurated a special system for a certain well-defined category of children.

The arrangement provided for under paragraphs II, III and IV of the Resolution was, according to paragraph V, to be regarded as an exceptional measure designed to meet a *de*

facto situation not covered by the Geneva Convention. But what to my mind prevents its being considered *solely as an expedient*, is that it was also destined to give effect to an idea which is set out at the beginning of paragraph II of the Resolution as follows: "The Council considers that it is inexpedient to admit to Minority schools children who speak only Polish." All that follows the enunciation of this idea, which reproduces Poland's main contention, can and should, in my view, be regarded as applying this idea.

Considered from the point of view of its *purpose*, the tests were to bear upon the question whether a child spoke the language of instruction of the Minority school sufficiently well to be able to profit by attendance at that school.

Considered from the point of view of its *immediate aim*, i.e., the putting into practice of the idea formulated at the outset of paragraph II, the tests were to serve as a ground for excluding from Minority schools children devoid of an elementary knowledge of German, that is to say children belonging to the category of those speaking Polish only.

Finally, considered from the standpoint of its function *in relation to Article 69, paragraph 1*, the tests afforded direct evidence that the German language, when in a given case a child's acquaintance with it fell below the standard indicated to the expert, could not apparently be regarded as that child's own language—evidence which released the Polish Government from the obligation to admit the child in question to a Minority school.

This exceptional system derogating from the ordinary one was, from the outset, even understood to be *temporary*, but its duration was not strictly defined. It was applied to children of the school year 1926-1927 and again to those of the school year 1927-1928. In the absence of a proposal recommending the application of the same system to children of subsequent school years and in the consequent absence of a further Council resolution, the tests were not continued. The system ceased to serve as a source for the production of fresh evidence by the expert originally appointed.

But the fact that the system itself has ceased to operate does not—to my mind—by any means necessarily involve the

cessation of its legal effects and does not deprive the evidence legally recorded in the past of any effect in the future. However temporary the exceptional system may have been, it is certain that, besides the character of an expedient, it also implicitly possessed an essential, protective character, in relation to the legal interest put forward by the Polish Government in its claim. To my mind, it is difficult not to have regard to the serious effort, on both sides, made to satisfy this appeal to the real import of Article 69, paragraph 1. To assume, for instance, that the tests which were continued until February, 1928, had ceased to be operative in May of the same year, when the entries had to be made for the school year 1928-1929, would accordingly perhaps be unduly to undervalue the importance of this effort.

It seems to me on the contrary that the maintenance of the legal effects beyond the end of the school year 1927-1928 is justified in the first place by the consideration that the main idea, to the carrying out of which the special system was devoted, had by no means ceased to hold good when the tests came to an end in February, 1928.

In the first place, the Council, on June 9th, 1928, in connection with a petition of the *Deutscher Volksbund* in another case, did not fail, in a resolution in the vote on which the representatives of the Governments which signed the Geneva Convention participated, to make the following statement: "The Council would point out that the difficulties which have arisen in this matter are due to the fact that many persons responsible for the education of children who do not speak the language of the Minority have, nevertheless, requested that these children be admitted as pupils in Minority schools. In this connection, the Council would refer to the opinion expressed in its Resolution of March 12th, 1927, to the effect that it is inexpedient to admit into Minority schools children who speak only Polish...."; thus, far from disappearing, the idea which had governed the arrangement of 1927 continued, in the view of the Council, to constitute an important feature of the Minority school system.

In the second place, the President of the Mixed Commission, in his opinion of February 15th, 1929, also expressed himself to the same effect: ".... apart from the question of law,

stress should be laid on the fact that pupils who do not speak the Minority language should not, for educational reasons, attend a Minority school, as their admission is not in accordance with a true appreciation of the interests of either the parents or the Minority school". (Permanent Court, Distr. 1858, p. 38¹.)

The maintenance of the legal effects beyond the date of the disappearance of the system itself also seems to me to be justified for the reason that if all value is denied to evidence already recorded by the method of direct investigation and if children excluded from Minority schools are brought under the system of indirect proof provided for by Article 131, paragraph 1, these children will be exposed to the risk of finding themselves sent, on the basis of declarations not in accordance with the facts, to schools not meant for them. The opinion of the President of the Mixed Commission shows that this danger is by no means imaginary and that, on the occasion of the entries for the school year 1928-1929, a large number of declarations conflicting with the conclusions of the expert were handed in. In view of this circumstance, the President of the Mixed Commission abandoned the idea of applying what he regarded as the strict law; made, as an exceptional measure, strict law give way before considerations based on equity and on a conciliatory school policy; and decided to reject the declarations in question. (See Permanent Court, Distr. 1858, p. 38¹.)

To summarize: an examination of the Resolution of March 12th, 1927, and that of December 8th, in so far as the latter continues the system of the former—an examination both of the form and of the intention underlying the establishment of the exceptional system—leads, to my mind, to the conclusion that it was right that the effects of that system should continue after the system itself has ceased to operate—subject only to the existence of legal provisions to the contrary expressly indicating that these effects should not make themselves felt afterwards.

¹ See the corresponding volume of Series C. of the *Court's Publications*.
[Note by the Registrar.]

II.

Amongst the relevant provisions are the following:

1. *The actual Resolution of March 12th, 1927*, which however contains no clause providing or prescribing that the results of the tests ordered were to be entirely without operative effect in years subsequent to that in which they were held.

2. *The Resolution of December 8th, 1927*, prescribing the continuation of the tests for children of the school year 1927-1928, certainly contains a reservation to the effect that the decision which the Court might give will decide whether children who, as a consequence of these examinations, may be transferred to Polish schools, are finally to be admitted to Minority schools. In this hypothetical and conditional form, the reservation quoted (leaving aside the tests provided for the school year 1926-1927, to which it does not relate) cannot, to my mind, directly affect the legal consequences even of the tests contemplated therein. For it to have this result it would have had to be immediately followed by a request from the Council itself asking the Court for an advisory opinion on this very question; failing a request by the Council, another way of bringing the matter before the Court remained open: namely, an application from the German Government with a view to obtaining a judgment on the same question, but the contents of this application were then unknown and were entirely in the hands of the German Government. But the reservation made the ultimate maintenance of exclusions—past or future—dependent, not on some future judgment, *no matter what it was about or what its contents were*, but on a judgment deciding whether in certain circumstances the transfer of the children in question was possible. Considered in itself and in relation to the whole mass of children examined in the years 1927 and 1928, it was devoid of any immediate effect upon the future consequences of the exclusions decreed.

3. *The German Application and the Court's judgment of April 26th, 1928.* The Court's judgment keeps within the limits of the conclusions of the German Application. (See Case of the German Government of December 31st, 1927, and the Application instituting proceedings of January 2nd, 1928, in the Court's Publications Series C., No. 14—II, pp. 87 and 89.) The Application placed the dispute on a plane entirely different from that of the arrangement of March 12th and December 8th, and from that contemplated by the reservation of December 8th, 1927: it was concerned solely with the interpretation of Articles 74, 106 and 131 of the Geneva Convention, and contained no reference whatever to the Council Resolutions and their effects. Accordingly, the Court was not in a position to concern itself with the exceptional system, its intrinsic value and the duration of its effects. Still less does the judgment contain anything regarding the transfer contemplated by the reservation in the Resolution of December 8th, 1927. Owing to the silence observed in this respect by the judgment of April 26th, 1928,—a silence due to the contents of the Application instituting proceedings—neither the judgment nor the reservation which had referred to it beforehand, can, in my opinion, be invoked as legal impediments to the continuance of the effects of the Resolutions of 1927.

4. Lastly, it remains to consider one legal source which has been relied on in the course of the written and oral proceedings: namely, *the Convention of Geneva of 1922*. In regard to this, the question may be put as follows: Can this Convention—as it has existed since its entry into force and as construed, in respect of certain articles, by the judgment of April 26th, 1928—be validly invoked, simply because it exists, to impugn the legal effects of the Resolutions of March 12th and December 8th, 1927?

The reply, in my opinion, must be in the negative for the following reasons:

The Convention of 1922 contains in Division II of Part III the common, normal, ordinary law regarding the transitional régime for Minority schools. The Court's judgment, in fixing the meaning of some of its articles, has not overstepped the limits of this same ordinary law. Having regard to its declar-

atory character, it has neither supplemented nor modified the Convention. The text of the Convention, as it existed when concluded and as it was in the year 1927, when the two Council Resolutions were adopted and when it in no way prevented the conclusion of a valid exceptional arrangement,—so it remained in 1928 when the Court was called upon to pass on the points left open by the Council and referred to it by the German Government; and finally so it remains now, and in this form it cannot in the future prevent the conclusion by the signatories of the Convention—should they see fit—under the auspices of the League of Nations of an agreement, compromise or arrangement either identical or similar or entirely different, which in its turn may depart in regard to some point from a provision of the transitional régime established by this Convention. And, in my opinion, it cannot do so because, being itself the common, normal, ordinary law, it is incapable of preventing the arising of exceptional law which, by definition, would be law derogating from the ordinary law. Just as it appears difficult to me to admit that the exceptional régime, which is essentially a derogation from the ordinary, can, as regards its validity, be discussed with reference to the provisions of the ordinary law from which it is a valid derogation, so the same difficulty arises when it is a question of invoking these provisions of ordinary law against the effects of an exceptional régime conceived and built up on an entirely different legal basis. However clear and emphatic the terms, meaning and operation of Article 131, paragraph 1, may be in the field of ordinary law, this article cannot on this account be invoked in the domain of exceptional law, for there it ceases to operate. The two régimes, general and special, derive their binding effect from the same source, namely the consent of the States concerned, the object of which is, in the one case, the establishment of the ordinary law, and in the other the creation of exceptions thereto.

(Signed) M. ROSTWOROWSKI.
